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## Password Non-Disclosure Agreement

Between

|                |  |
|----------------|--|
| Name           |  |
| Company        |  |
| Contact person |  |
| Address        |  |
| Telephone      |  |
| Email          |  |

- hereinafter referred to as "Information Recipient" -

and

**AEI Power GmbH**, Uracher Str. 91, 72555 Metzingen

- hereinafter referred to as "AEI Power" -

### Preamble

The Information Recipient has acquired one or more inverters by AEI Power. The Information Recipient requires the necessary password to be able to make adjustments in the short term to said inverters in accordance with changing technical requirements due to changing statutory regulations.

In order to prevent fraudulent use of the password, it is important that the Information Recipient maintain confidentiality with respect to the password and refrain from disclosing them to any unauthorized parties.

Given this background, the Information Recipient and AEI Power hereby enter into the following Non-Disclosure Agreement:

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## §1

### Non-Disclosure Obligation

1. The Information Recipient is obligated to maintain strict confidentiality concerning the password covered by this Agreement for inverters manufactured or distributed by AEI Power, and not pass them on to third parties.
2. Third parties do not include employees and other members of the Information Recipient's staff, provided that they need to know about the password for their work.

Insofar as the Information Recipient discloses the password protected under this Non-Disclosure Agreement to one of its employees or other member of staff, it must inform said employee or member of staff of this Non-Disclosure Agreement in advance, and make said employee or member of staff bound by the same obligations in writing, and document such. A copy of said documentation shall be provided by the Information Recipient to AEI Power upon request.

The Information Recipient is obligated to do everything necessary to monitor and enforce the non-disclosure obligations of its employees and other members of staff to the extent that it discloses the password that is subject to non-disclosure.

3. The Information Recipient is also liable for its employees and other members of staff's compliance with this Agreement.

## § 2

### Exceptions from Non-Disclosure Obligation

The non-disclosure obligation does not apply to information that the Information Recipient proves

1. was already known to it prior to being informed of it by AEI Power, or
2. it was informed of by a third party not subject to a non-disclosure obligation after being informed of it by AEI Power without a non-disclosure obligation, or
3. was generally known or obvious at the time of transmission or become so later at no fault of the Information Recipient, or
4. has been approved by AEI Power for disclosure in writing, or
5. must be disclosed on the basis of a binding order from a government authority or binding court order, or on the basis of a law. In the latter case, the Information Recipient must, to the extent legally permissible, inform AEI Power of the disclosure in advance of the disclosure, and if that is not possible, inform AEI Power of the disclosure immediately after the disclosure.

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### **§3**

#### **Duration of Non-Disclosure Obligation**

1. The above non-disclosure obligations are applicable as of the date this Agreement is entered into for the duration of the use of the inverters of AEI Power, as well as for two more years afterwards.
2. When the Information Recipient ceases to use the inverters by AEI Power, the Information Recipient shall, without being prompted to do so, delete or destroy the confidential information (password) and any copies made of them so that they cannot fall into the hands of any third parties.

### **§ 4**

#### **Limited Use**

The Information Recipient is exclusively authorized to use the password for the adjustment of inverters by AEI Power in accordance with changing technical requirements due to changing statutory regulations. The Information Recipient is aware that improper changes may cause substantial damage (also to the public electrical grid) and hereby declares its consent to be liable for all damage due to improper changes while using the password.

Prior to making changes to inverters by AEI Power, the Information Recipient is obligated to consult with the electricity supplier that operates the grid that the Information Recipient feeds the power from the inverters by AEI Power into, and to coordinate all changes with said electricity supplier.

### **§ 5**

#### **Damages**

If the Information Recipient negligently breaches its obligations, then it is obligated to compensate AEI Power for damage incurred by AEI Power within the scope of the statutory eligibility for compensation.

### **§ 6**

#### **Final Provisions**

1. If a provision of this Agreement is null and void, invalid or unenforceable in full or in part, then the validity and enforceability of all of the remaining provisions shall remain unaffected by such. The null and void, invalid or unenforceable provision shall be deemed replaced by a valid and enforceable provision that reflects the commercial purpose of the null and void, invalid or unenforceable provision in terms of object, extent, time, place or scope as closely as possible. The same applies for any gaps in this Agreement.

2. Collateral agreements have not been made. Amendments or supplements to this Agreement must be made in writing. The written form requirement must also be waived in writing if it is to be waived.
3. This Agreement is subject to the substantive law and the law of civil procedure of the Federal Republic of Germany, with the exception of conflicts of law provisions of German private international law.
4. The Agreement's legal venue shall be Stuttgart in the event that the Information Recipient is a merchant, or a legal entity under public law, or is in possession of a special fund under public law. AEI Power is also entitled to assert claims in the court having jurisdiction for the place where the Information Recipient has its head office. Any exclusive legal venue shall remain unaffected by such.

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|-------|------|-----------|
|       |      |           |
| Place | Date | Signature |